

HCS HBs 2658, 2147, 2472 & 2546 -- ELECTRONIC COMMUNICATIONS

SPONSOR: Costlow

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Utilities by a vote of 20 to 1. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 10 to 0.

The following is a summary of the House Committee Substitute for HBs 2658, 2147, 2472 & 2546.

The bill requires the No-Call List to include any subscriber to telephone, wireless, or a similar service. If a number has been reassigned, any previous business relationship or exclusive dealings are invalidated. The bill also specifies that a person does not have to renew his or her objection to receiving solicitations.

The bill establishes the "Caller ID Anti-Spoofing Act", which requires telecommunications providers to block certain calls as specified in the bill and consistent with Federal law. A provider is considered in compliance with these requirements if the provider has filed a certification with the Federal Communications Commission that the provider's traffic meets certain requirements detailed in the bill.

No later than August 28, 2027, providers must implement a STIR/SHAKEN authentication protocol or an alternative technology that provides comparable or superior capability to verify and authenticate certain caller identification information.

Any provider that knowingly fails or neglects to comply with these requirements is subject to fines of \$25,000 for the first offense, \$50,000 for the second offense, and \$75,000 for the third and any subsequent offense.

It is a violation of these provisions if a caller enters false information or places a call knowing false information was entered into a caller identification service with the intent to deceive, defraud, or mislead the recipient of the call.

The recipient of any call in which the caller uses false caller ID information has standing to recover punitive damages against the caller in an amount up to \$5,000 per call. Call recipients may bring action under this section as a class. The Attorney

General may initiate legal proceedings or intervene in legal proceedings on behalf of call recipients.

This bill is similar to HB 509 (2025).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that by expanding the definition of subscribers to allow businesses to join the No Call List, many businesses will save time and resources not having to answer telemarketing and spam calls. This bill will also provide additional protection to elderly and other residents by criminalizing call spoofing.

Testifying in person for the bill were Representative Costlow; Missouri Bankers Association; Missouri Chamber Of Commerce; and Arnie C. Dienoff.

OPPONENTS: There was no opposition voiced to the committee.

OTHERS: Others testifying on the bill say that providers work hard to block spam texts and calls. Others also expressed concerns with states having a patchwork of laws across the country that providers must comply with.

Testifying in person on the bill were T-Mobile; At&T Missouri; and Verizon.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.